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ORIGINAL PAPER

Partisan Appeals to Bipartisanship

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Abstract

How do members of Congress build public support for legislation? Many argue it is through the framing of the legislative process or carefully curated explanations that appeal to their constituents' preferences. Some suggest the key to members of Congress building public support for legislation is appealing to bipartisanship—signaling to the public that legislation was crafted through compromise and is liked by members on both sides of the aisle. Given the hyper-partisan era that presently exists, however, these bipartisan appeals are unlikely to occur in a vacuum. The minority party has incentives to engage in counter framing to undermine support for legislation. We demonstrate that the benefits awarded to members by engaging in bipartisan appeals are overstated. By engaging in counter messaging, members in the minority party can undermine the legislative accomplishments of their opponents, as well as approval for the legislature. Minority-party members, however, must be careful in how they counter message: partisan, rather than non-partisan, messages actually increase support for the legislature's majority party while decreasing support for the minority party.

Keywords Bipartisanship · Congress · Polarization · Public opinion

On November 15, 2021, President Joe Biden signed the Infrastructure Investment and Jobs Act, or as it is more commonly known, the Bipartisan Infrastructure Bill, into law.[1] Congressional Democrats and President Biden, alike, emphasized this bipartisan rhetoric throughout all stages of this bill's legislative process. As legislators seek to build their reputation by claiming credit for their legislative victories and blaming the opposition for legislative failures (Mayhew, 1974; Fenno, 1978),

[1] P.L. 117–48.

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each side is equally invested in crafting a message and telling a procedural story that will help shape public opinion in its favor (Evans, 2001; Evans & Oleszek, 2002).

Recent research demonstrates that when seeking to build support for legislation, members of Congress reference bipartisan negotiations or the presence of bipartisan support, as such cues make constituents—especially out-partisans—more likely to support a bill (Westwood, 2020). Given this, the Democrats' continued reference to the Bipartisan Infrastructure Bill, rather than the law's formal title, is unsurprising.

But just as the majority seeks to garner public support for legislation, the minority party also has incentives to undermine this support (Mayhew, 1974). Studies that show the efficacy of bipartisan rhetoric, however, rarely account for counter frames from opponents. As only 13 Republicans voted for the Bipartisan Infrastructure Bill, there was no shortage of Republican opposition to the Democrats' bipartisan frame. While Democrats sought to bolster public support for this bill by referencing bipartisanship, Republicans sought to undermine this support by counter messaging with competing, negative rhetoric. As election margins have decreased, the importance of messaging for bolstering support among constituents for re-election purposes has increased significantly (Lee, 2016). It is, therefore, reasonable to expect minority-party members will seek to undermine positive, bipartisan frames of legislation and provide an opposing counter message.

Such counter frames can affect public opinion (Chong & Druckman, 2007). Most relevant for our purposes, constituents are more likely to follow partisanship than any relevant substantive or contextual information when competing parties introduce counter frames (Druckman et al., 2013). When cued by the presence of a partisan label, constituents side consistently with similarly aligned elites (Druckman et al., 2013). Furthermore, knowing that polarized frames mitigate the importance of substantive information—such as the size of a winning, bipartisan coalition—raises suspicions about the positive effect of using a bipartisan cue to garner support (Harbridge et al., 2014; Westwood, 2020). This paper demonstrates that bipartisan rhetoric, when presented in conjunction with a competing frame from the minority party, loses its power of persuasion.

We suggest that existing literature fails to sufficiently assess the extent to which bipartisan framing can garner support for legislation when the complete information environment is considered. We demonstrate that while there are instances of widespread bipartisan support in both legislating and messaging, bipartisan frames do not always exist in a vacuum. Rather, they are often delivered in conjunction with partisan counter messages from the minority party. Using congressional floor speeches, we find that minority-party speeches do include negative sentiment and partisan cues in opposition to the majority party's bipartisan claims. To measure a more accurate effect of elite frames on public opinion, therefore, we field a survey in which respondents are presented not only with a positive, bipartisan message, but with opposing counter messages as well. We find that the presence of counter messages, whether non-partisan or partisan in nature, significantly decrease support for legislation among voters as well as their approval of the legislative body as a whole.

Our findings suggest that although members of Congress invoke themes of bipartisanship when seeking to increase support for legislation, the effectiveness of this strategy is conditional on the minority party's counter messaging, or lack thereof.

As soon as the minority party introduces an opposing message, we find that bipartisan messaging loses its power of persuasion. To this end, members in the minority party who oppose a bill face a consistent incentive to counter message these bipartisan appeals. Minority-party members, however, must be careful not to be overtly partisan in their counter messaging, as such a strategy can hurt the public's perception of both the minority party and the legislative body, as a whole. By assessing the effect of the minority party's counter message, we demonstrate that appeals to bipartisanship are less effective in building support than previously thought.

Bipartisan Messaging and Counter Messaging

When members proactively message on congressional activity (Curry & Lee, 2020) and when they respond to inquiries from constituents (Grose et al., 2015), they use cues they believe will be popular with their relevant audience. The public has long desired for members of Congress and the president to compromise and reach across the aisle when crafting legislation.[2] In a 2005 poll, 71% of respondents said President Bush should work to compromise with Democrats instead of pushing through his agenda.[3] After Democrats' successful 2008 election in which they won the House of Representatives, Senate, and presidency, a 2009 poll showed 60% of respondents said Democrats in Congress should pass bipartisan legislation as opposed to what they think is right for the country.[4] Even recently, as politics have become even more contentious, a 2019 poll found 65% of voters say it is very important to have elected officials who are willing to compromise.[5]

Given the positive view voters have of bipartisanship, it is no surprise many members appeal to such cues when explaining their legislative activity (Westwood, 2020). But how does one define a bill as bipartisan? The literature does not paint a clear picture. Some use the bipartisan label if a bill is cosponsored by members of both parties (Harbridge & Malhotra, 2011; Harbridge et al., 2014). Others use the term if members of both parties form a winning coalition to pass the legislation (Adler & Wilkerson, 2013). As a matter of public opinion, these distinctions matter little as public awareness of what constitutes bipartisanship is low.

Westwood (2020) finds that only 33% of survey respondents can correctly define "bipartisanship." It is important to note that while respondents can accurately identify the presence of bipartisan coalitions when presented with hypothetical roll-call voting results (Harbridge et al., 2014), the public generally lacks political information (Carpini & Keeter, 1997) and it is unlikely voters are aware of exact roll call

[2] "Broad Support for Political Compromise," *Pew Research Center*, 2007. https://www.pewresearch.org/politics/2007/01/22/broad-support-for-political-compromise-in-washington/.

[3] "National Poll," *Los Angeles Times*, January 2005. http://www.trbas.com/media/media/acrobat/2006-01/21312324.pdf.

[4] "President Obama, the Economy, and Foreign Affairs," *CBS News*, July 13, 2009. https://www.cbsnews.com/htdocs/pdf/poll_Obama_071309.pdf.

[5] Alec Tyson, "Partisans say respect and compromise are important in politics—particularly from their opponents," *Pew Research Center*, June 19, 2019. https://www.pewresearch.org/fact-tank/2019/06/19/partisans-say-respect-and-compromise-are-important-in-politics-particularly-from-their-opponents/.

vote outcomes. Rather they form an opinion based on the information the media and politicians disseminate about a bill or policy (Arnold, 2004; Grimmer, 2013; Grimmer et al., 2014). As long as the messaging surrounding a bill uses bipartisan rhetoric, the true size of the winning coalition has no effect on the public's view of the legislation as bipartisan (Westwood, 2020). Furthermore, neither the number of mentions of bipartisanship nor the number of members from the other party joining a winning coalition affect support (Westwood, 2020). Knowing that the majority still uses bipartisan cues even when facing a large opposing coalition, along with the incentives of members in the minority party to make counter messages, it is reasonable to expect that bipartisan messaging rarely appears in a vacuum.

Consider a situation in which Republican and Democratic members both support *and oppose* a given bill. The Bipartisan Infrastructure Bill, for example, passed the House of Representatives with a vote of 228–206. The coalition voting for the bill was comprised of 215 Democrats and 13 Republicans, and those voting in opposition to the bill were six Democrats and 200 Republicans. As mentioned previously, existing research demonstrates that the size of the bipartisan coalition does not matter for the purposes of this argument, as members frequently appeal to bipartisanship regardless of the number of minority members joining the winning coalition. Prior to even receiving a vote in the House, Democratic members urged their colleagues to support this "bipartisan" bill. Despite the fact that this bill did garner bipartisan support, the presence of a bipartisan majority does not preclude the losing coalition from claiming the victory was partisan. Representative Bob Gibbs (R-Ohio), for example, criticized the bill on the House floor during debate as "nothing more than the Green New Deal in disguise." He went on to state that the "House Democrats' my-way-or-the-highway bill is bloated Big Government at its worst." It is apparent, then, that members on the losing side of a bipartisan victory, do, in fact, make partisan counter frames.

The complexity of the legislative process, coupled with an uninformed and inattentive electorate, creates the perfect opportunity for members of Congress to invoke bipartisan messages, even when legislation is not overwhelmingly bipartisan. With the contentious political environment that exists today with close election margins, we argue it is unlikely for claims of bipartisanship to go unanswered by the minority party, unless a bill receives unanimous support. Given voters follow the frames of politicians from their party (Druckman et al., 2013), we argue the current state of the literature on bipartisan messaging is incomplete, as it fails to address the scenario presented above, in which bipartisan messaging is countered with a competing, partisan message. In this paper, we ask two central questions: first, does counter messaging exist alongside bipartisan messaging and, second, does counter messaging render bipartisan messaging ineffective?

Using speech data from the Congressional Record to evaluate members' real messaging strategies, we demonstrate first that members of Congress do, in fact, make partisan counter arguments to bipartisan appeals. We then field a survey in which we vary the counter message respondents receive, uncovering that bipartisan messaging loses its persuasion when coupled with a relevant opposing message. In addition, we find that among minority-party respondents, partisan counter messaging is the most effective response to a bipartisan message for diminishing support for legislation.

Our results, therefore, carry broad implications for minority-party members' decision to counter message as well as the content of their counter message.

Invocations of Bipartisanship in Congressional Speeches

In order to demonstrate that members of Congress do counter message appeals to bipartisanship, we turn to data from the *Congressional Record*, collected by Gentzkow et al. (2019). We rely on all floor speeches made in the House of Representatives from the 103th Congress to the 114th Congress to assess whether or not, and then how, members of Congress respond to bipartisan appeals. We focus on this time period due to the increase in electoral competition resulting in higher levels of uncertainty with regards to the House majority, and thus an increased focus on legislative messaging (Lee, 2016).

Floor speeches serve as a useful tool for capturing members' rhetoric as it is a mechanism by which members appeal to voters, explaining their Washington activity (Fenno, 1978) and conveying a policy position (Mayhew, 1974). In members of Congress' calculus of how best to spend their limited time in DC, engaging in floor speeches is undoubtedly a costly endeavor. Preparing speeches takes staff time and resources, in addition to the time a member must spend waiting her turn on the House floor. The members that do choose to engage in this type of communication, therefore, expect to receive some sort of benefit (Westwood, 2020). Grimmer et al. (2014) demonstrate that members do, in fact, use this messaging tool to communicate with constituents, expecting that floor speeches will gain media attention, furthering their electoral goal.

While delivering a floor speech is an act taken by an individual member of Congress, these efforts are often coordinated by party leaders. Lee (2016) notes that, "[party] leaders are now expected to coordinate the use of the floor to advance partisan messages" (258). Furthermore, Lee argues that with the rise in party competition, members—often as directed by their party leaders—engage in this partisan conflict for the direct purposes of "position taking for partisan public relations" (Lee, 2016, p. 287). While we analyze rhetoric at the individual speech level, it is clear that this behavior is a coordinated effort within parties to build public support for policies or specific legislation. Floor speeches, therefore, are perfectly situated to aid in the effort of seeking to understand how members appeal to bipartisan claims for the purposes of winning public support, as well as how these claims are rebutted.

To assess how minority-party members counter message, we isolate days in the Congressional Record in which majority-party members discuss legislation using bipartisan rhetoric. We then measure the extent to which speeches from minority-party members express a negative or positive opinion. This allows us to determine whether the minority party generally mirrors this positive sentiment or if they express any discontent in the face of bipartisan rhetoric from the majority party. If the minority party engages in counter messaging, as we expect they will, we should see no correlation between the minority party's opinion sentiment and the presence of bipartisan cues in majority speeches. In the next section we describe these measures in more detail, as well as discuss the trends observed in congressional speeches.

Methods

To capture the extent of bipartisan messaging in House floor speeches, we look at the proportion of majority-party speeches in a single day that mention bipartisanship. For the purpose of our analysis, we make the assumption that the majority party in the House of Representatives advocates for legislation and the minority party counter messages on legislation. Understanding that the majority party—and the Speaker, in particular—holds the agenda-setting power in the House of Representatives (Cox & McCubbins, 2002), and knowing that the Speaker will rarely allow legislation to reach the floor unless it has the support from a majority of the majority (i.e. the Hastert Rule), this assumption is a bit crude, yet theoretically reasonable.

To evaluate minority-party counter messaging, we rely on a measure of opinion sentiment. To capture this measure of opinion sentiment, we conduct sentiment analysis of all speeches given by the minority party in a single day using a lexicon developed by Rheault et al. (2016). Rheault et al. use a supervised machine-learning method to capture emotional sentiment in parliamentary text from the United Kingdom. It is important to note while this lexicon was not developed using congressional floor speeches and while there are procedural differences between the two legislative bodies, the measure is more domain relevant than a general sentiment lexicon.[6] Words in the Rheault et al. lexicon that are scored as the most positive are "congratulate," "delighted," "high-quality," "tribute," and "commend." A variety of words reach the minimum value for the negative side of the lexicon, ranging from "unfair" to "wrong" to "careless." Conceptually, all words at the poles of the lexicon would still be considered positive and negative in both the Parliament of the United Kingdom as well as the United States Congress.

Using this lexicon and scoring method, we calculate an opinion score for each speech given in the House of Representatives between 1993 and 2016. These scores are calculated by taking the sum of words' polarity scores that are positive and negative in each speech. We then take the average sentiment of all minority party floor speeches in a single day, giving us a measure of minority-party sentiment. If minority-party members do counter message the majority party's bipartisan references, rather than observing a negative correlation, there should be no correlation between the minority party's opinion sentiment and the proportion of majority-party speeches that invoke bipartisanship. A lack of correlation, rather than a negative correlation, would suggest that there are instances in which minority-party members do support legislation that the majority refers to as bipartisan (e.g., unanimously supported legislation), while also capturing instances in which the minority party expresses strong disapproval (a negative sentiment) for legislation the majority touts as bipartisan.

[6] We do, however, find similar results in this section using the Bing lexicon, developed by Hu and Liu (2004) using consumer reviews.

Analysis of Congressional Speeches

In order to assess the extent that negative opinion sentiment from minority-party members exists alongside bipartisan messaging from the majority, we compare the correlation between the daily average of minority-party opinion sentiment with the proportion of majority-party speeches mentioning bipartisanship. It is important to note we are making no causal claims about this relationship—we are merely demonstrating both types of messaging (majority-party bipartisan messaging and minority-party counter messaging) occur concurrently. If it were the case that minority-party members do not counter message bipartisan claims, we would expect to find a strong positive correlation between the proportion of speeches mentioning bipartisanship and the opinion sentiment of minority-party speeches. If there were no opposing minority-party messages, the positivity of minority-party speeches should increase as the proportion of bipartisan speeches increases. However, we do not find evidence to suggest that the minority remains silent in the face of bipartisan messaging. Rather, we find only a very weak, slightly positive relationship between majority-party bipartisan messaging and minority-party opinion sentiment, suggesting that the minority party does counter message bipartisan claims.

Figure 1 shows the proportion of majority-party speeches mentioning bipartisanship per day on the x-axis, and the daily average opinion sentiment in minority-party speeches on the y-axis.[7] Positive numbers for opinion sentiment indicate more positive speeches, on average per day, and negative numbers indicate more negative speeches, on average per day. As is evident, there is significant variation in the proportion of speeches mentioning bipartisanship, with a range from 0 to 0.347 and mean value of 0.039. For the majority of days Congress is in session in our data, a majority-party member of Congress is making a reference to bipartisanship. As for minority-party opinion sentiment, there is also significant variation. The average minority-party speech's opinion sentiment on a given day has a median score of 11.736 and mean score of 12.559, with values ranging from 3.402 to 37.472. With this parliamentary lexicon scoring words such as "thank" as indicative of a positive sentiment, it is unsurprising that the minority party will have generally positive sentiment scores as nearly all members speaking on the House floor will thank the preceding member who yielded them time to speak.

Most important for our analysis, though, we find a weak correlation (corr. = 0.295) between bipartisan messaging and opinion sentiment.[8] While we cannot be certain that the lack of correlation is not a result of some other factor, e.g.

[7] We restrict our analysis to only days with speeches above the 1st quartile for the majority (32) and minority (25) to avoid the influence of a single speech on a day's average. Our analysis produces the same results with all days included, which can be found in Appendix A.

[8] For comparison, we find that within the majority party, mentions of bipartisanship and opinion sentiment has a correlation of 0.462. Within the minority party, the correlation of bipartisan mentions and opinion sentiment is 0.396. As one would theoretically expect, both of these values demonstrate that within-party correlation is higher than the correlation between the majority party's bipartisan mentions and the minority party's opinion sentiment. This suggests that while measurement error presumably plays a role in this lack of across-party correlation, it is clear that measurement error is not the only contributing factor to this lack of correlation.

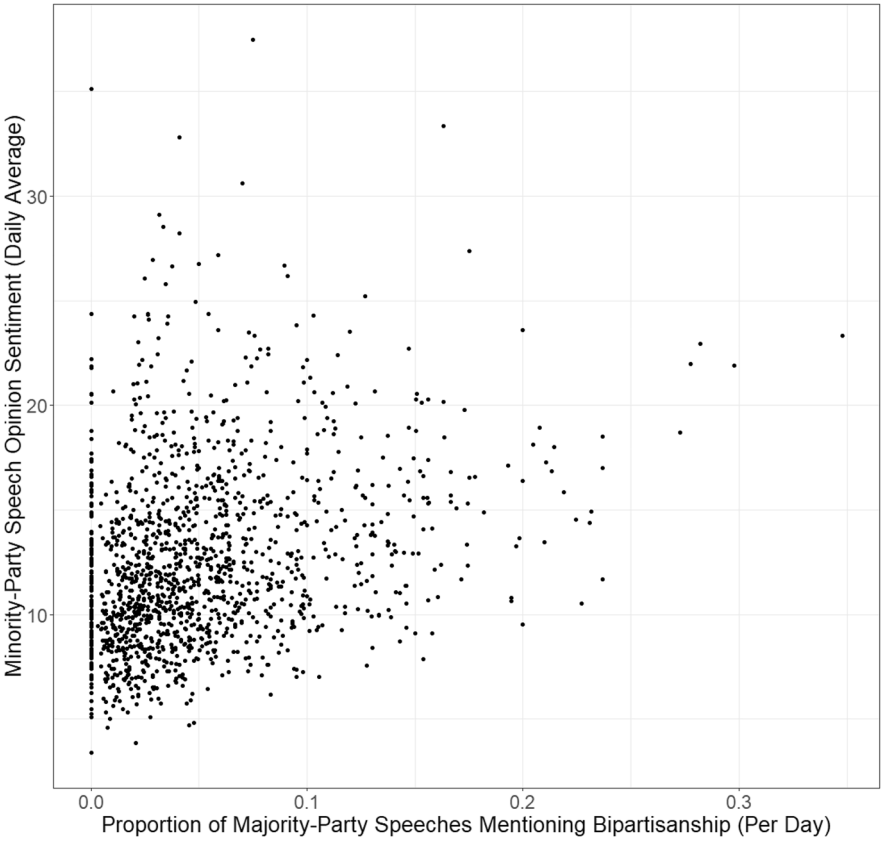


Fig. 1 Bipartisan messaging v. opinion sentiment. Note: This figure shows the weak correlation (corr. = 0.295) between minority-party speech opinion sentiment (daily average) and proportion of majority-party speeches mentioning bipartisanship (per day)

measurement error, sample size, or some alternative mechanism, we suggest the weak relationship demonstrates that bipartisan messages do not exist in a vacuum. While Fig. 1 does display a positive relationship between majority-party appeals to bipartisanship and the minority party's sentiment, the weak correlation suggests that days with high bipartisan messaging from the majority party appear concurrently with both positive opinion sentiment and relatively negative opinion sentiment from the minority.

To mitigate concerns that the weak correlation is a result of measurement error, we also look at cross-party comparisons using the same measures. When comparing the proportion of *majority*-party speeches in a given day that reference bipartisanship and the proportion of *minority*-party speeches in that same day that reference bipartisanship, we find a correlation of 0.547. In a similar cross-party comparison, we find a correlation of 0.478 between *majority*-party opinion sentiment and *minority*-party opinion sentiment. While these measures do suggest that when the majority

is talking about bipartisanship, the minority is also talking about bipartisanship, as well as when the majority is more positive the minority is also more positive, the fact that these correlations for the same measure are moderately correlated at best suggests that there is still significant variation in how the minority responds to majority-party bipartisan appeals. These moderate correlations suggest that when the majority party references bipartisanship, the minority party is also more likely to reference bipartisanship, yet the lack of a strong correlation demonstrates that this is not always the case. Similarly, a strong correlation in opinion sentiment, for example, would suggest that when the majority party is praising a piece of legislation the minority party is as well. We can observe, however, that there are numerous instances in which the majority party expresses a positive sentiment on the same day the minority is expressing a negative sentiment.

To validate the existence of counterframing, we use the analysis depicted in Fig. 1 to isolate a day in the *Congressional Record* in which the minority party's sentiment score falls below the 15th percentile, indicating an overwhelmingly negative tone, and a rate of majority-party bipartisan mentions that places this day above the 85th percentile in our data in references to bipartisanship. On January 13th, 2015, as the House of Representatives debated the Regulatory Accountability Act of 2015 (H.R. 185), members of the Republican majority touted this bill as a bipartisan effort, while Democrats were extremely critical of this piece of legislation.[9] Though the bill did ultimately receive eight Democratic votes, establishing it as having bipartisan support, many Democrats expressed their strong opposition during debate. Representative Grijalva (D-Ariz.) was one of many Democrats decrying what he calls a Republican bill: "This is not about making government more efficient. It is about making it impossible for many government agencies to do their jobs on behalf of the American people. In the name of regulatory reform, Republicans are intentionally cutting off the people who oversee our lands and waters at their knees."

Another day that, according to our sentiment analyses, saw exceedingly negative remarks from the minority party in the face of positive, bipartisan appeals from the majority party was July 15, 2009.[10] On this day, the House of Representatives was debating one of the 12 annual appropriations bills. The bill ultimately passed the House with bipartisan support, as 79 members of the minority party supported its passage, and received praise from the majority party for its bipartisan nature, while many members of the minority party lamented the lack of an open, bipartisan process. The chair of the relevant appropriations subcommittee, Representative Pastor (D-Ariz.) began the debate on this bill thanking his counterpart and for his "extraordinary friendship and cooperation." Representative Pastor continued on to state that, "this is a bipartisan bill that represents the fair and balanced treatment of competing priorities. This is the way our constituents expect their Representatives to work together, and I am proud of this bipartisan process." Republican members in the minority, however, suggested that the process by which this bill navigated

[9] For example, in his floor speech, Representative Fitzpatrick (R-PA) highlighted the fact that many pieces of this bill passed through the House nearly unanimously and had a substantial number of bipartisan cosponsors.

[10] This day meets the same percentile thresholds as the date listed above.

its way through the legislative process would "damage bipartisanship and comity" in the House of Representatives, as this particular process abandoned the tradition of "allowing free and open debate on appropriations bills." These examples demonstrate that though the majority party can reasonably appeal to bipartisan efforts and outcomes, members in the minority party still often express strong, negative opinions.

This analysis suggests there is significant variation in minority-party framing. In certain instances, when the majority-party leans into bipartisan appeals, the minority-party reflects similar levels of positive sentiment and refrains from highly partisan speech. In instances such as this, the existing literature on the effects of bipartisan appeals is clear: voters prefer politicians who work together (see footnotes 1 through 4), and legislation that is presented as bipartisan (Westwood, 2020). Research on the effectiveness of bipartisan messaging, however, has not yet considered how counter-messaging — in both expressing opposition to legislation and leaning into partisan cues — diminishes this effect. As is evident in our analysis of congressional speeches, members in the minority party do counter message in the presence of bipartisan rhetoric. It is, therefore, necessary to evaluate the effect of bipartisan rhetoric in the face of this counter messaging. In the following sections, we assess the effect of this partisan counter messaging on the persuasiveness of bipartisan messaging.

Theoretical Expectations

Having demonstrated in our analysis of floor speeches that members finding themselves in the losing coalition of a bipartisan bill do, in fact, counter message, we seek now to uncover the effect of such counter messages on voters' support for legislation, approval of the legislature, and affective feelings towards legislators in each party.

We focus first on the implications of counter messaging on the support for legislation. Studies of framing consider primarily the effect of messaging in a vacuum, causing these studies to potentially overestimate the effect in experimental settings (e.g., Sniderman & Theriault, 2004). As we have demonstrated, bipartisan appeals do not appear uncontested and these counter frames should have significant implications on public opinion (Chong & Druckman, 2007). In competitive framing environments, such as messaging on legislation, frames tend to cancel each other out (Chong & Druckman, 2007; Druckman et al., 2010). Further, Druckman et al. (2013) find that when respondents are presented with two frames lacking partisan identification, the strength of each argument determines a respondent's propensity to support one stance over the other. We suggest, therefore, that voters' support for a given piece of legislation will depend on the inclusion of a counter message. We argue that when presented with minimal policy information—which is how most legislation is communicated to the public—counter messaging bipartisan appeals will decrease support for legislation, regardless of the strength of the counter message. This theoretical expectation leads us to our first two hypotheses:

H1a When presented in conjunction with a bipartisan majority party message, a non-partisan counter message, as compared to no counter message, should decrease support for legislation among both co- and out-partisans.

H1b When presented in conjunction with a bipartisan majority party message, a partisan counter message, as compared to no counter message, should decrease support for legislation among both co- and out-partisans.

In the same vein, we also consider the effect of counter messaging on support for a legislature. As discussed previously, voters show a strong preference for bipartisan activity (Westwood, 2020). Knowing that the public has a preference for certain policymaking processes (Hibbing & Theiss-Morse, 2001) and that the public's approval of new laws will decrease as the process appears more partisan (Curry, 2019), we suspect that this will translate into the public's approval of the legislative body as well. Additional work has also demonstrated that enactments of legislation can affect evaluations of Congress (Jones, 2013). In particular, Jones (2013) shows that respondents who are supportive of legislation are more likely to increase their approval of Congress, whereas those who disapprove of legislation are less approving of Congress. As with support for legislation, we expect the inclusion of a counter message should decrease feelings towards the legislature as a whole. This leads to our second set of hypotheses:

H2a When presented in conjunction with a bipartisan majority party message, a non-partisan counter message, as compared to no counter message, should decrease approval of the legislature among both co- and out-partisans.

H2b When presented in conjunction with a bipartisan majority party message, a partisan counter message, as compared to no counter message, should decrease approval of the legislature among both co- and out-partisans.

A remaining question from our theory is which minority party message is more effective for diminishing support of legislation and approval of the legislature when coupled with a bipartisan message: non-partisan opposition or partisan opposition? By invoking partisan cues, as well as the speaker being a member of a political party, members communicate information about the party's stance on the legislation. Such cues in elite rhetoric should have significant implications for citizens' attitudes (Zaller, 1992). Because voters are not well-versed when it comes to political matters, they draw many of their opinions about public policy and opinion from political elites of their own party (Lenz, 2013). Moreover, in times of heightened partisanship, those who identify with a party are especially motivated to follow leaders' cues (Hetherington & Rudolph, 2015). This reasoning extends to the effect of competing frames: when citizens are aware of the partisanship of competing frames, they follow their preferred party regardless of the strength of the frame (Druckman et al., 2013). For those who do identify with the minority party, learning about a party's stance should decrease support for that legislation. For those identifying with the

majority party, however, it is less clear what the implication of learning the opposition party's stance is; citizens are already aware of their party's stance due to bipartisan messaging. Work by Harbridge et al. (2014) provides some insight. Despite the fact citizens prefer bipartisan collaboration (see footnotes 1 through 4), the desire for bipartisanship is conditional on their own party not giving up to much to the opposition (Harbridge et al., 2014). This leads to our third set of hypotheses:

H3a When presented in conjunction with a bipartisan majority party message, a partisan counter message, as compared to a non-partisan counter message, should decrease support for legislation and approval of the legislature for minority party co-partisan respondents.

H3b When presented in conjunction with a bipartisan majority party message, a partisan counter message, as compared to a non-partisan counter message, should increase support for legislation and approval of the legislature for minority party co-partisan respondents.

To this point, we have considered measures of support for both legislation and legislatures. It is substantively important, however, to consider whether declining support and approval are distributed equally among legislators in each party. In other words, how does the nature of each counter message affect respondents' feelings towards legislators in each party? When it comes to legislative gridlock, negative messaging and blaming the opposition has significant effects: respondents decrease their support of both the majority and minority party (Doherty & Harbridge-Yong, 2020). Given voters' proclivity to support bipartisan activity, we expect to find similar effects for counter messaging decreasing support regardless of party.

H4a When presented in conjunction with a bipartisan majority party message, a non-partisan counter message, as compared to no counter message, should decrease positive feelings towards both majority and minority party legislators.

H4b When presented in conjunction with a bipartisan majority party message, a partisan counter message, as compared to no counter message, should decrease positive feelings towards both majority and minority party legislators.

Overview of Survey Design

To test our hypotheses, we fielded a survey through Qualtrics with 2455 respondents, weighted by Census benchmarks. Survey responses were collected from March 15, 2022 through April 1, 2022. In this design, we presented respondents with a description of a hypothetical bill and fictitious responses from state legislators about the bill. We vary the style of the counter message (non-partisan, partisan, or none) while holding constant the majority party's bipartisan message. There are, therefore,

three possible message combinations with which respondents can be presented: (1) bipartisan x non-partisan, (2) bipartisan x partisan, and (3) bipartisan x none.

To avoid confounding our findings by selecting an issue with widely known partisan stances, we utilize a hypothetical bill on a low-salience issue: infrastructure.[11] Additionally, to ensure that our findings are consistent across either party serving in the majority, we present this hypothetical bill at the state level to allow for variation in the chamber's majority. We vary the state referenced in accordance with the randomly assigned majority party. The vignette with which respondents were presented is as follows:

> Last month, the Colorado state legislature passed a bill appropriating $750 million for the improvement of bridges and dams throughout their state. This bill passed the state senate 20–10 before being signed into law by the governor.
> A senior Democrat praised the bill as, "an important, bipartisan piece of legislation. A bipartisan majority took a crucial step forward in the funding and improvement of our state's vital infrastructure. We worked tirelessly to draft this bipartisan bill, and I am proud to see it signed into law today."
> A senior [Republican/senator] responded: "This afternoon, [Democrats in/] our state senate took steps to pass legislation to allocate our scarce budgetary resources toward funding unnecessary infrastructure projects. [The Republican Party/I] did not support this [partisan/] bill."[12]

After presenting respondents with these two frames, we ask them to indicate their level of support for this fictitious bill on a seven-point, oppose-support scale. We also asked about their overall approval of the state legislature on a seven-point, approval-disapprove scale, as well as feeling thermometer towards members in the state legislature of each party.[13]

Analysis

To test our first hypothesis, we utilize a one-sided difference-of-means test to evaluate the effect of counter messages on support for legislation, approval of the legislature, and feelings towards legislators from both parties.

For our first set of hypotheses, we assess the how counter messaging, both non-partisan or partisan, affects support for "bipartisan" legislation. As discussed in **H1a**

[11] This was a lower-salience issue before President Biden proposed his infrastructure plan in the summer of 2021, yet we do think that a hypothetical bill on bridge and dam funding is still an issue on which voters will not have strong priors and for which there is general bipartisan support. To mitigate any concerns, we compare levels of support between Democrats and Republicans across all conditions. Democrats have a mean level of support of 4.96 and Republicans have a mean level of support of 4.74. While the mean levels of support are statistically different from one another, we do not think this represent significant issue polarization one would expect if infrastructure were a clear partisan issue. We also run all analyses separated by party, varying which party holds the majority, and find consistent support for our results throughout. These additional analyses can be found in Appendix D.

[12] When respondents were presented a vignette featuring a Republican majority, the state depicted was Arizona (see Appendix B).

[13] See Appendix C for full question wording.

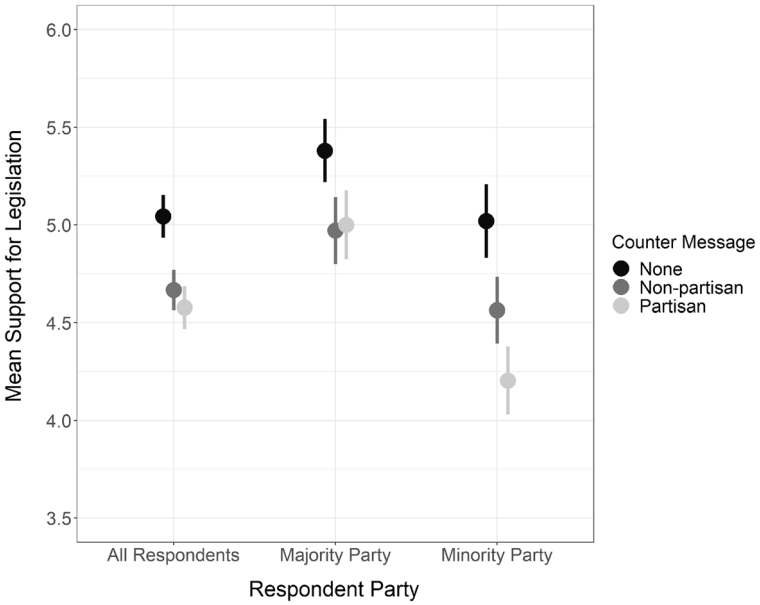


Fig. 2 Effect of minority-party counter messages on support for legislation. Support for legislation is scaled from strongly oppose (1) to strongly support (7). The inclusion of non-partisan and partisan counter messages decreases support among all respondents, majority-party respondents, and minority-party respondents. Points represent means and whiskers represent 95% confidence intervals. See Fig. 1 in Appendix D for analysis separated by majority party in the legislature, and Fig. 1 in Appendix E for analysis separated by respondent strength of partisanship and party

and **H1b**, we expect both counter messages to decrease support for legislation. Figure 2 displays the mean levels of support for legislation with a partisan counter message, a non-partisan counter message, and no counter message. Consistent with our expectations, we find counter messaging significantly decreases support for legislation regardless of the type of counter message. When compared with the condition where there is no counter message, partisan counter messaging decreases support for legislation among all respondents by 0.466 (p-value < 0.001). We see a decrease in support of legislation among respondents in the majority party (diff $= -0.380$, p-value < 0.001) as well as the minority party (diff $= -0.816$, p-value < 0.001). We find similar effects when comparing a non-partisan counter message with no counter message: support for legislation decreases by 0.377 (p-value < 0.001) among all respondents. We also see decreases in support for legislation among both majority party respondents (diff $= -0.410$, p-value < 0.001) as well as minority party respondents (diff $= -0.457$, p-value < 0.001).

Our results here demonstrate that minority party counter messages can significantly decrease support for legislation regardless of the nature of the counter

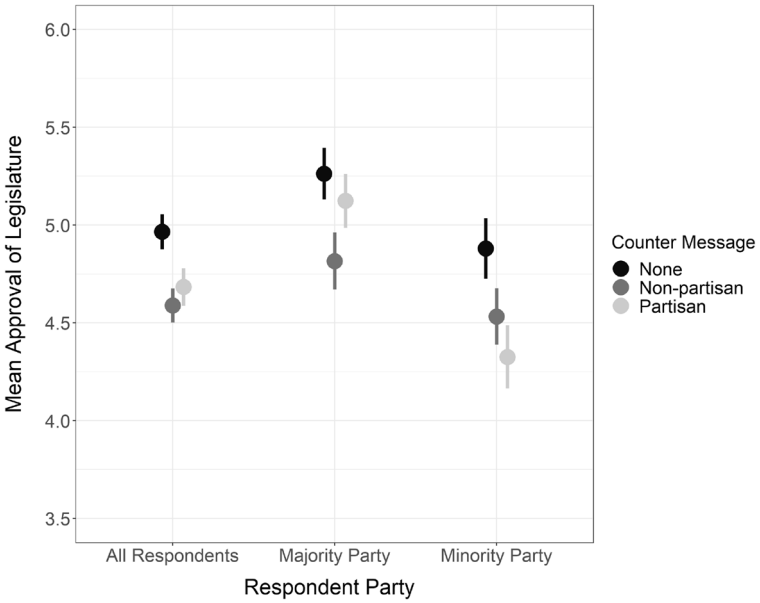


Fig. 3 Effect of minority-party counter messages on approval of the state legislature. Approval of the state legislature scaled from strongly disapprove (1) to strongly approve (7). The inclusion of a non-partisan counter message decreases approval among all respondents, majority-party respondents, and minority-party respondents. The inclusion of a partisan counter message decreases approval among all respondents and minority-party respondents. Points represent means and whiskers represent 95% confidence intervals. See Fig. 2 in Appendix D for analysis separated by majority party in the legislature, and Fig. 2 in Appendix E for analysis separated by respondent strength of partisanship and party

message and across respondents from both parties.[14] To contextualize the substantive significance of our results in this section, prior analysis by Westwood (2020) with a similar experimental design found bipartisan messaging increased support for legislation among minority party respondents by 0.35. Given we find a reduction with similar, if not greater magnitude, our results demonstrate any gains in support for legislation made by using majority party bipartisan messaging can be mitigated by minority-party counter messaging.

We turn next to assess the extent to which minority-party counter messaging affects respondents' approval of the state legislature. As with support for legislation, we expect counter messaging, both partisan and non-partisan, to decrease respondents' approval of the legislature. Figure 3 displays the results for partisan counter messaging and non-partisan counter messaging compared with no counter message.

[14] We do not test the experimental condition in which the minority party also *endorses* a given piece of legislation as bipartisan. Knowing that the public follows cues from their own party (e.g. Druckman et al. 2013), the presence of a supportive message should, naturally, increase minority-party support for legislation. In Fig. 2 we can see empirically that the level of support for legislation by majority-party respondents is higher than the level of support from minority-party respondents when presented with no counter message. We suspect that the introduction of a positive, minority-party message would reduce this difference and lead to similar levels of support among majority- and minority-party respondents.

As expected, partisan counter messaging decreases support for the state legislature among all respondents (diff = 0.283, p-value < 0.001). For partisan counter messaging, however, this effect is primarily concentrated in minority-party respondents (diff = 0.553, p-value < 0.001); we do not find a statistically significant decrease in approval for the state legislature among majority-party respondents (diff = 0.14,0 p-value = 0.076) when compared with a frame that does not contain a counter message. Turning to the non-partisan counter message, we find consistently that a non-partisan counter message decreases respondents' approval of the state legislature when compared with no counter message. Our results are substantively similar across all respondents (diff = 0.377, p-value < 0.001), majority-party respondents (diff = 0.447, p-value < 0.001) and minority-party respondents (diff = 0.347, p-value < 0.001).

Thus far, our analyses have demonstrated both negative opinion messaging and partisan counter messaging exist alongside bipartisan messaging. Further, both types of counter messages diminish the effectiveness of bipartisan messaging in garnering support for legislation and well as increasing approval of the legislative body as a whole. We now consider whether party cues are important for reducing support for legislation. To evaluate our next set of hypotheses, we employ a difference-in-means test to evaluate the effect of a partisan counter frame compared to a non-partisan counter frame in support for legislation (Fig. 4, left panel) as well as approval for the legislature (Fig. 4, right panel).

Consistent with our expectations, we find that partisan counter framing decreases support for legislation among minority-party respondents (diff = − 0.359, p-value < 0.01). There are, however, not statistically significant differences among majority-party respondents (diff = 0.030, p-value = 0.407). This provides partial support for our hypothesis that partisan counter messaging will have a polarizing effect when compared with non-partisan counter messaging. When it comes to approval for the state legislature, however, we do find it has the expected polarizing effect: partisan counter messaging increases majority-party respondents' approval of the legislature (diff = 0.307, p-value < 0.01) while decreasing minority-party respondents' approval of the legislature (diff = − 0.206, p-value < 0.05).

Finally, we consider the affective implications of counter messaging and assess the extent to which legislators from each party stand to gain or lose depending on the minority party's messaging strategy. Figure 5 displays respondents' feeling-thermometer rating for legislators in the majority party. Consistent with our hypothesis, we find that non-partisan counter messaging, in particular, has negative effects on respondents. Among all respondents, a non-partisan counter message decreases support towards majority-party legislators by − 3.027 (p-value < 0.05) when compared with no counter message. We find a similar effect among minority-party respondents (diff = − 5.315, p-value < 0.01) but not a statistically significant decline among majority-party respondents (diff = − 1.886, p-value = 0.139). When comparing support towards majority-party legislators with a partisan counter frame and no counter frame, our results run counter to our expectations. Across all respondents (diff = 1.605, p-value = 0.874), majority-party respondents (diff = 2.070, p-value = 0.891), and minority-party respondents (diff = − 0.821, p-value = 0.360), we do not find statistically significant differences in feelings towards majority-party legislators. It

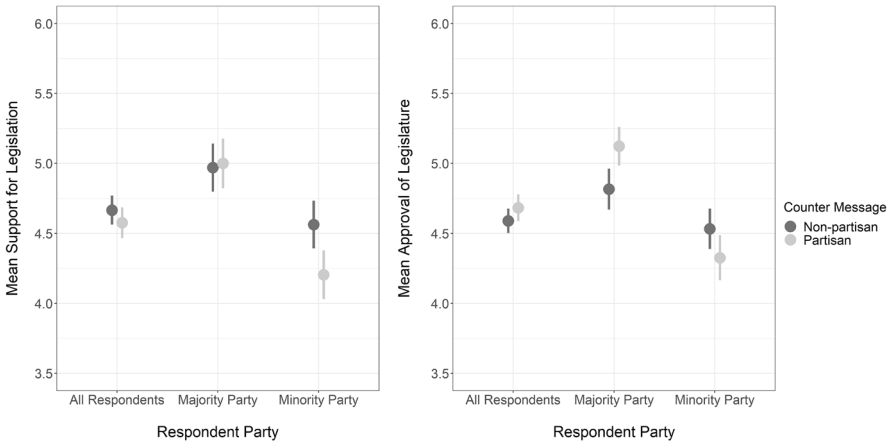


Fig. 4 Effect of minority-party counter messages on support for legislation and approval of the state legislature. The graph in the left panel captures respondents' support for legislation and the graph in the right panel captures respondents' approval of the state legislature. Support for legislation is scaled from strongly oppose (1) to strongly support (7). The inclusion of a partisan counter message, when compared with a non-partisan counter message, decreases support for legislation among minority-party respondents. Approval of the state legislature is scaled from strongly disapprove (1) to strongly approve (7). The inclusion of a partisan counter message, when compared with a non-partisan counter message, increases approval of the legislature among majority-party respondents and decreases approval of the legislature among minority-party respondents. Points represent means and whiskers represent 95% confidence intervals. See Figs. 1 and 2 in Appendix D for analysis separated by majority party in the legislature, and Figs. 1 and 2 in Appendix E for analysis separated by respondent strength of partisanship and party

should be noted that across all three groups, a non-partisan counter messaging produces significantly lower feelings towards majority-party legislators when compared with a partisan counter message.

Turning to feelings toward minority-party legislators (Fig. 6), we also find the type of counter message has important implications. When compared with no counter message, partisan counter messaging significantly decreases feelings towards minority-party legislators. This difference is found among all respondents (diff = − 9.252, p-value < 0.001), majority-party respondents (diff = − 13.008, p-value < 0.001) and minority-party respondents (diff = − 5.118, p-value < 0.01). When comparing non-partisan counter messaging with no counter messaging, all respondents (diff = − 2.472, p-value < 0.05) and majority-party respondents (diff = − 5.918, p-value < 0.01) see a decline in feelings towards legislators in the minority party. There is no difference among minority-party respondents (diff = − 0.181, p-value = 0.458). Again, it is important to note there are significant differences when comparing support for minority-party legislators between the non-partisan counter message and the partisan counter message; we observe a decline among all respondents (diff = − 6.780, p-value < 0.001), majority-party respondents (diff = − 7.091, p-value < 0.001), and minority-party respondents (diff = − 4.937, p-value < 0.01).

In conjunction with our results demonstrating feelings changes towards majority party legislators, there are clear implications for the type of counter message minority-party members choose to use. If members seek to undermine the legislative

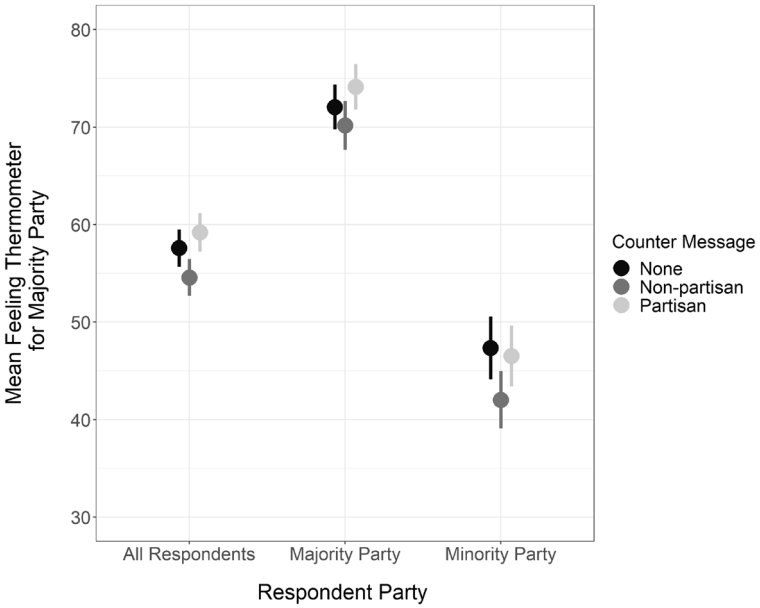


Fig. 5 Effect of minority-party counter messages on feeling thermometer for majority-party legislators. Feeling thermometer toward majority-party legislators is scaled from cold (0) to warm (100). The inclusion of a non-partisan counter message decreases feelings towards majority-party legislators among all respondents and minority-party respondents. The inclusion of a partisan counter message does not exert a statistically significant effect on feelings towards majority-party legislators. Points represent means and whiskers represent 95% confidence intervals. See Fig. 3 in Appendix D for analysis separated by majority party in the legislature, and Fig. 3 in Appendix E for analysis separated by respondent strength of partisanship and party

accomplishments of their opponents, it is important that they avoid invoking partisan language. Non-partisan counter messaging is more effective at decreasing support for those in the majority, as well avoiding a back-fire effect among fellow minority-party respondents.

Discussion

Both politicians and the public advocate for bipartisan legislative outcomes. It is no surprise, then, that in the absence of counter messaging, bipartisan messaging increases support for legislation (Westwood, 2020). As we have demonstrated, however, bipartisan claims are not always left unopposed; minority-party members often engage in both negative and partisan counter messaging. When coupled with this counter messaging, bipartisan rhetoric produces little to no increase in support among the mass public for legislation. Partisan counter messaging, in particular, significantly decreases support among the mass public when compared with non-partisan counter messaging.

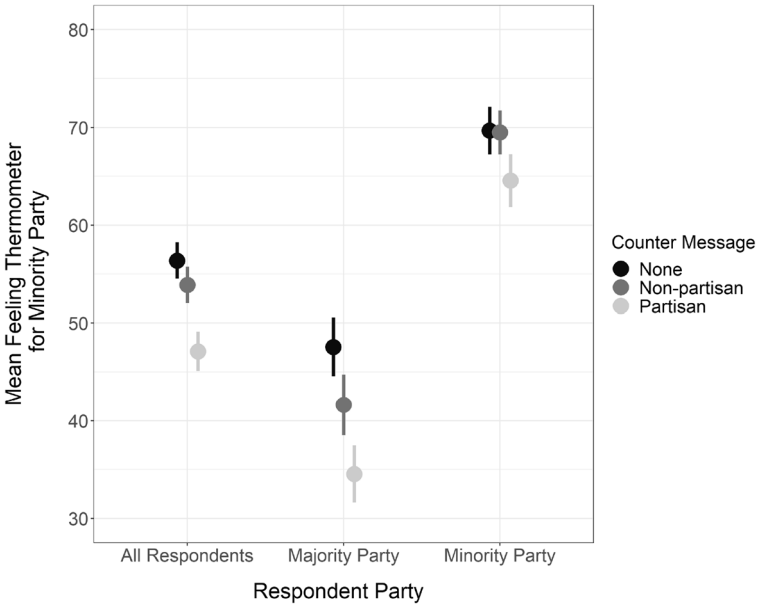


Fig. 6 Effect of minority-party counter messages on feeling thermometer for minority-party legislators. Feeling thermometer toward minority-party legislators is scaled from cold (0) to warm (100). The inclusion of a non-partisan counter message decreases feelings towards minority-party legislators among all respondents and majority-party respondents. The inclusion of a partisan counter message decreases feelings towards majority-party legislators among all respondents, majority-party respondents, and minority-party respondents. Points represent means and whiskers represent 95% confidence intervals. See Fig. 4 in Appendix D for analysis separated by majority party in the legislature, and Fig. 4 in Appendix E for analysis separated by respondent strength of partisanship and party

We know that messaging can have implications for public support, especially when discussing issues on which citizens have less strongly held beliefs (e.g., Taber & Lodge, 2006). In that vein, we believe our results generalize well to those low-salience issue categories. On issues where citizens hold much stronger beliefs, we expect the effect size of our results would diminish, if not disappear. It should be noted, however, that the majority of legislation that receives a vote in Congress has strong levels of bipartisan support, and tackles policy areas in which the public has weakly held beliefs (Curry & Lee, 2020; Krehbiel, 1998; Mayhew, 2005).

Our results provide a more holistic understanding of bipartisan messaging. If members of Congress seek to garner public support for legislation and champion their legislative accomplishments, it is important that their efforts are a widespread bipartisan effort, free—or nearly free—from opposition. To this extent, our work possesses important implications members of Congress should consider when employing their messaging strategy. For those in the majority—especially those in closely contested districts—there is a real incentive to produce bipartisan legislation with near-unanimous support, championed by both sides.

For members in the minority, however, our results paint a more pessimistic picture. Members do face an incentive to counter message and refuse to engage in compromise, as we find that counter messages are successful in decreasing support for both legislation and legislative bodies. Minority-party members should take caution, however, when employing these counter messages, as an overtly partisan counter message can hurt voters' support for their own party.

We do not purport to suggest that members of Congress should avoid engaging in bipartisan activity, but we do demonstrate that participating in such cross-partisan legislating might not garner the electoral benefits a member thinks it might.

These findings add to the growing body of literature that seeks to explain the public's general disapproval of Congress. The minority's incentive to discredit the majority's claims of bipartisanship, along with the media's amplification of this negative rhetoric, is yet another reason why the public perceives Congress as a partisan institution, incapable of compromise.

Supplementary Information The online version contains supplementary material available at https://doi.org/10.1007/s11109-022-09838-7.

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Data Availability Data and replication code can be found at the following link: https://github.com/crcase/partisan-appeals-to-bipartisanship.

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